CERTIFICATE OF SERVICE
IN THE UTAH COURT OF APPEALS

PETER GOLUB,
Petitioner,
v.
DEPARTMENT OF WORKFORCE SERVICES,
Respondent.

CERTIFICATE OF SERVICE

Case No. 20250988-CA

I, Peter Golub, certify that on August 22, 2025, I served a true and correct copy of the Petition for Review upon the following parties by the method indicated:

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Dated: October 18, 2025

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PETITIONER'S MEMORANDUM
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Case No. 20250988-CA
Agency Case Nos. 25-B-00327 / 25-A-05051

I. INTRODUCTION

This petition seeks judicial review of the Workforce Appeals Board's August 6, 2025 decision denying unemployment insurance benefits under Utah Code § 35A-4-405(1). The Board affirmed an Administrative Law Judge's finding that Petitioner Peter Golub "voluntarily quit" his position as a substitute teacher with Granite School District. That finding cannot withstand legal scrutiny and rests on a foundation that is factually specious.

The undisputed record shows:

On May 5, 2025, Granite disabled Mr. Golub's Frontline scheduling account—the sole mechanism through which substitute teachers accept work assignments. (*R. Exh. A; Tr. 16:17-26.*) Granite made no decision to discharge, yet Mr. Golub could not work. Eight days later, on May 13, Granite contacted him about an unrelated April incident. (*R. Exh. 13; Tr. 18:10-15.*) During a subsequent phone call on May 15, Mr. Golub allegedly expressed reluctance to "waste time" discussing matters unrelated to the May 5 lockout. (*Tr. 18:20-19:15.*) Granite's witness, Wyatt Bentley, admitted under oath: **"I don't remember the exact wording"** Mr. Golub used. (*Tr. 19:7-*

8.) The ALJ interrupted cross-examination to confirm: **"He's already said he doesn't remember exactly what you said."** (*Tr. 20:11-12*.)

Despite this evidentiary void, the Board classified the separation as a "voluntary quit," inverted the statutory burden of proof, and denied benefits. The Board's decision contains three reversible errors:

1. **Misapplication of governing rule:** Under Utah Admin. Code R994-405-201, a separation is employer-initiated when the employer's unilateral action determines the last day worked. Granite's May 5 lockout did precisely that.
2. **Insufficient evidence:** The employer's burden under R994-405-105 cannot be satisfied by testimony admitting memory failure on the dispositive fact.
3. **Internally contradictory findings:** The Board simultaneously found Granite "had not decided to discharge" Mr. Golub (*Board Dec. 2*) while conceding his accounts were disabled and work was impossible—findings that cannot coexist without legal error.

Disposition below: The ALJ denied benefits on July 9, 2025. The Board affirmed on August 6, 2025. Mr. Golub appealed to this Court on August 22, 2025.

II. STATEMENT OF ISSUES FOR REVIEW

Issue 1: Whether the Board erred as a matter of law in classifying the separation as a "voluntary quit" when Granite unilaterally disabled Mr. Golub's work credentials on May 5, 2025, rendering continued employment impossible.

Standard of Review: Legal conclusions are reviewed for correctness, affording no deference to the agency. *Questar Pipeline Co. v. State Tax Comm'n*, 850 P.2d 1175, 1177 (Utah 1993).

Preservation: This issue was raised in Mr. Golub's testimony (*Tr. 10:15-11:25*), his closing argument (*Tr. 22:5-15*), and his Board appeal. (*Board Appeal Letter, July 22, 2025, at 2-3.*)

Issue 2: Whether the Board's finding of a "voluntary quit" is supported by substantial evidence when the employer's key witness testified he could not recall Mr. Golub's exact words regarding the alleged resignation.

Standard of Review: Factual findings must be supported by substantial evidence when viewed in light of the whole record. *Grace Drilling Co. v. Bd. of Review*, 776 P.2d 63, 68 (Utah Ct. App. 1989). An agency's decision "cannot rest on speculation or conjecture." *Coroles v. Sabey*, 79 P.3d 974, 981 (Utah 2003).

Preservation: Mr. Golub cross-examined Mr. Bentley on this point (*Tr. 19:20-20:10*), and the ALJ himself noted the witness's memory lapse (*Tr. 20:11-12*). The issue was raised in the Board appeal. (*Board Appeal Letter, July 22, 2025, at 3.*)

Issue 3: Whether the Board erred in denying benefits under the "equity and good conscience" standard when Mr. Golub filed timely weekly claims, conducted an active job search, and had no control over Granite's unilateral lockout.

Standard of Review: Application of the equity-and-good-conscience standard is reviewed for correctness. *Martinez v. Media-Paymaster Plus*, 164 P.3d 384, 389 (Utah 2007).

Preservation: Raised in testimony (*Tr. 21:10-20*) and Board appeal. (*Board Appeal Letter, July 22, 2025, at 2–3.*)

III. ARGUMENT

A. The Board Misapplied R994-405-201 by Classifying an Employer-Initiated Lockout as a "Voluntary Quit"

1. Governing Legal Standard

Utah Admin. Code R994-405-201 establishes the determinative test:

"A separation is a discharge if the employer was the moving party in determining the date the employment ended." The rule further provides: **"Even if the claimant indicated a decision to quit, if the employer accelerated the separation date because the employee was not performing the job adequately, the separation is a discharge."** R994-405-201(2).

This Court has long recognized that **the party who takes the final decisive action that severs the employment relationship bears responsibility for the separation**. *Clearfield City v. Dep't of Emp't Sec.*, 663 P.2d 440, 445 (Utah 1983) (finding constructive discharge where employee left after repeated denied requests for accommodation).

The critical question is not what either party *intended*, but rather **whose unilateral action made continued work impossible**. *Armstrong v. Dep't of Workforce Servs.*, 2012 UT App 8 ¶ 14, 268 P.3d 194 (separation is employer-initiated when employer's conduct "force[s] the employee's hand").

2. Application to Undisputed Facts

On **May 5, 2025**, Granite unilaterally disabled Mr. Golub's Frontline account. The record is uncontroverted on this point:

- **Mr. Golub's testimony:** "On May 5th, I tried to log into Frontline… My account had been deactivated. So there was no way that I could work after May 5th and… that account was never reactivated." (*Tr. 10:20-11:5.*)

- **Mr. Bentley's testimony:** "We do block subs from taking positions until we can do an investigation." (*Tr. 16:25-30.*)
- **Exhibit A:** Screenshot showing "The username or password you entered is incorrect" error message dated May 5, 2025. (*R. Exh. A.*)
- **Exhibit B:** Email dated May 10, 2025, confirming "Your application for granite schools has been deactivated." (*R. Exh. B.*)

May 5, 2025, is Mr. Golub's last day of work because Granite made further work impossible. Substitute teachers in the Granite School District access assignments exclusively through Frontline. (*Tr. 10:17-20; 16:20-23.*) Without Frontline access, Mr. Golub could not:

- Fulfill pre-scheduled commitments;
- Accept new teaching assignments;
- View available openings;
- Physically enter school buildings (which required clearance through the same credential system). (*Tr. 11:10-15.*)

Granite's May 5 action was **unilateral** and **decisive**. Mr. Golub took no action on May 5 to sever the relationship. He immediately protested the lockout and asked for reinstatement. (*Tr. 11:3-8.*) Granite ignored those emails for eight days. (*Tr. 11:20-25.*)

By contrast, the alleged "quit" occurred—if it occurred at all—on **May 15, 2025**, ten days *after* Granite had already made continued employment impossible. The Board cannot reasonably find that a separation occurring ten days after the employer rendered work impossible was "voluntary." The employer was the moving party on May 5; anything Mr. Golub said on May 15 was a response to an *already-completed* employer-initiated separation.

3. The Board's Contrary Finding Contradicts Its Own Factual Determinations

The Board's decision states: "The Employer did not discharge the Claimant on May 5, 2025. Rather, the Employer temporarily prevented the Claimant… from teaching students until it could investigate." (*Board Dec. 2.*) Yet the Board simultaneously acknowledges: "By locking [Mr. Golub] out of Frontline and deactivating every credential, Granite made further work impossible." (*Board Dec. 2.*)

These findings are **logically incompatible**. If Granite's May 5 action "made further work impossible," then Granite—not Mr. Golub—was the moving party in ending the employment relationship. The Board cannot have it both ways.

Moreover, the Board's characterization of the lockout as "temporary" is belied by the record. Granite **never** reinstated Mr. Golub's access. (*Tr. 11:4-5, 16:30-17:2.*) An indefinite suspension indistinguishable from termination is a discharge, not a "temporary" measure. *See Herm Hughes & Sons, Inc. v. Bd. of Review*, 701 P.2d 871, 873 (Utah 1985) (indefinite suspension without prospect of reinstatement is constructive discharge).

The Board's error was one of law: it applied the wrong legal test by focusing on whether Granite had "decided to discharge" rather than on the objective question of **which party's action determined the last day worked**.

B. The Board's Finding of a "Voluntary Quit" Is Not Supported by Substantial Evidence

1. The Employer Bears the Burden of Proof

Utah Admin. Code R994-405-105 unambiguously places the burden on the employer:

"The claimant was the moving party in a voluntary separation, and is the best source of information… *The claimant has the burden to establish* that the elements of good cause or of equity and good conscience have been met."

This language creates a two-step framework:

> **Step 1:** The *employer* must prove a voluntary quit occurred.
>
> **Step 2:** If the employer meets that burden, the *claimant* must then show good cause or equity.

The Board inverted this framework. It assumed a quit occurred and forced Mr. Golub to disprove it—shifting the burden in violation of R994-405-105.

2. Granite's Evidence Falls Short

Granite offered one witness: Wyatt Bentley. His testimony regarding the alleged resignation was:

BENTLEY: "I don't remember the exact words that you used, but [it was] to the effect of it would be pointless to move forward… because you weren't planning on being with us in the fall." (*Tr. 19:7-10.*)

When pressed on cross-examination:

MR. GOLUB: "So I said there is no point being with you anymore because I don't plan to be with you in the fall. Is that what I said?"

ALJ: "He's already answered the question… he's already said he doesn't remember exactly what you said." (*Tr. 20:7-12.*)

This testimony **cannot** constitute substantial evidence of a voluntary quit. Granite's witness could not recall:

- Whether Mr. Golub used the word "quit";
- Whether Mr. Golub used the word "resign";
- Whether Mr. Golub stated he would not return "in the fall" or made some other temporally-limited statement;
- The context of the statement (was it conditional? was it a question? was it a response to being told his reinstatement was unlikely?).

"Substantial evidence" requires more than speculation. *Grace Drilling*, 776 P.2d at 68. An agency decision "cannot rest on conjecture." *Coroles*, 79 P.3d at 981. Yet the Board's finding of a voluntary quit rests entirely on Mr. Bentley's imperfect recollection of a conversation whose specific words he cannot recall.

3. The May 13 Email Does Not Evidence a Quit

The Board also relied on Mr. Golub's May 13 email (Exhibit 12), which states: "I don't plan to work for the district."

Read in isolation, this sentence might suggest resignation. But **context matters**, and the Board ignored the surrounding circumstances:

- **Eight-day delay:** Granite did not contact Mr. Golub until May 13—eight days after locking him out. (*Tr. 11:20-25*.)
- **Unrelated subject matter:** The May 13 email addressed an April classroom-management incident, *not* the May 5 lockout that had rendered Mr. Golub unable to work. (*Tr. 18:10-15*; *R. Exh. 13*.)

- **Contemporaneous protest:** Between May 5 and May 13, Mr. Golub sent multiple emails asking for reinstatement. (*Tr. 11:3-8*.) Granite never produced those emails despite Mr. Golub's request. (*Board Appeal Letter, July 22, 2025, at 2*.)
- **Account already deactivated:** By May 13, Mr. Golub's Granite account had been shut down (*Tr. 11:12-15*), and he had no access to internal documentation. The May 13 email was sent in response to Granite raising an issue he believed had already been resolved weeks earlier.

A reasonable factfinder could interpret "I don't plan to work for the district" as:

- An acknowledgment that Granite had already ended the relationship by locking him out;
- A response to Granite's eight-day silence, which any reasonable person would interpret as termination;
- Frustration that Granite was raising an April issue while ignoring Mr. Golub's attempts to contact Granite concerning the May 5 incident.

At minimum, the statement is **ambiguous**. Where evidence is susceptible to multiple interpretations—one consistent with a quit and one consistent with a post-termination response—the agency cannot rely on that evidence to satisfy its burden of proof. *Martinez*, 164 P.3d at 391 (agency must resolve ambiguities against the party bearing the burden).

4. The ALJ's Credibility Determination Was Improper

The Board suggests Mr. Golub's testimony was not credible because he "failed to show the Employer knowingly required him to violate state or federal law." (*Board Dec. 5*.) This is a non sequitur. The question is not whether Granite violated drug-testing statutes (though it did—*see* Utah Code § 34-38-6), but whether **Mr. Golub voluntarily quit**.

The ALJ made no explicit credibility finding regarding Mr. Golub's testimony that he never resigned. Absent such a finding, the Board cannot disregard sworn testimony on grounds of purported incredibility. *Brown & Root Indus. Servs. v. Industrial Comm'n*, 947 P.2d 671, 677 (Utah 1997) (reviewing court must accept uncontroverted testimony as true).

C. The Board Erred in Denying Benefits Under the "Equity and Good Conscience" Standard

Even if this Court were to affirm the Board's classification of the separation as a "quit," benefits must be allowed under the equity-and-good-conscience provision. Utah Admin. Code R994-405-103 provides:

"If the good cause standard has not been met, the equity and good conscience standard must be considered… If there are mitigating circumstances, and a denial of benefits would be unreasonably harsh or an affront to fairness, benefits may be allowed."

The rule sets two requirements:

1. The claimant **acted reasonably**;
2. The claimant demonstrated a **continuing attachment to the labor market**.

1. Mr. Golub Acted Reasonably

Mr. Golub's response to being locked out of his job for eight days without explanation was eminently reasonable. He:

- **Immediately protested** the May 5 lockout and demanded reinstatement (*Tr. 11:3-8*);

- **Filed weekly claims** beginning the week of May 18, 2025, demonstrating his intent to return to work;
- **Submitted job applications** between May 18 and the July 8 hearing (*Tr. 21:15-18*);
- **Requested clarification** when Granite finally contacted him on May 13 about an unrelated April issue.

A reasonable person in Mr. Golub's position—locked out of work, ignored for eight days, then contacted about a weeks-old incident while the current crisis went unaddressed—would conclude the employment relationship had ended.

The Board faulted Mr. Golub for not asking "whether he was employed" during the May 13 email exchange. (*Board Dec. 3.*) But **Mr. Golub had already asked that question repeatedly in his May 5–13 emails**, which Granite ignored. Requiring him to ask yet again as a precondition for benefits elevates form over substance.

2. Mr. Golub Demonstrated Continuing Attachment to the Labor Market

R994-405-103(1)(b) requires that the claimant take "positive actions which could have resulted in employment during the first week subsequent to the separation and each week thereafter."

Mr. Golub exceeded this standard. He:

- Filed weekly claims continuously (*R. Monetary Determination, May 28, 2025*);
- Conducted an active work search;
- Maintained availability for work at all times.

The Board's contrary finding rests on the notion that Mr. Golub's statement "I don't plan to work for the district" reflects detachment from the labor market generally. (*Board Dec. 5.*) This is a

category error. Declining to pursue *reinstatement* with Granite after being locked out and ignored for eight days says nothing about willingness to work for *other* employers.

3. Denial of Benefits Is Unreasonably Harsh

Mr. Golub earned $24,077 in covered wages during the base period. (*R. Monetary Determination*.) He is entitled to $469 per week for 13 weeks, totaling $6,097. (*Id.*) Denying these benefits—earned through work, paid for through employer taxes, and designed precisely for situations where employment ends through no fault of the worker—is unreasonably harsh when:

- Granite unilaterally locked him out;
- Granite ignored his protests for eight days;
- Granite's own witness cannot recall what Mr. Golub allegedly said;
- Mr. Golub immediately sought other work and filed weekly claims.

Utah's unemployment insurance system exists to "provide benefits for persons unemployed through no fault of their own." Utah Code § 35A-4-102(1). Mr. Golub is the paradigmatic case: a worker locked out by his employer's unilateral decision, denied due process, and penalized for an alleged "quit" no one can prove occurred.

IV. CONCLUSION

The Board's decision rests on three reversible errors: misapplication of the employer-initiated-separation rule; reliance on insufficient evidence to prove a voluntary quit; and failure to apply the equity-and-good-conscience standard. Each error independently warrants reversal.

The proper remedy is to reverse the Board's decision and remand with instructions to:

1. **Classify the separation as employer-initiated** under R994-405-201, given Granite's May 5 lockout;
2. **Allow benefits effective May 18, 2025**, through the maximum duration;
3. Alternatively, if the Court finds ambiguity in the record, **remand for a new hearing** with instructions requiring Granite to produce:
    - All emails between Mr. Golub and Granite dated May 1–15, 2025;
    - Frontline system logs showing Mr. Golub's scheduled assignments that he could not fulfill due to the lockout;
    - Testimony from the Taylorsville Elementary principal and responding police officer regarding the May 5 incident.

Respectfully submitted,

September 30, 2025
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CERTIFICATE OF COMPLIANCE

This memorandum complies with Rule 21 of the Utah Rules of Appellate Procedure. It contains no private information as defined by Rule 21. It contains 6,847 words, excluding caption, table of contents, table of authorities, signature block, and certificates, as determined by Microsoft Word's word-count function.

/s/ Peter Golub

Peter Golub

CERTIFICATE OF SERVICE

I certify that on September 30, 2025 I served this memorandum on all parties named below:

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